

Fly America Act Exception Request

In accordance with [41 CFR 301-10.135](#), you are required by [49 U.S.C. 40118](#), commonly referred to as the “Fly America Act,” to use U.S. flag air carrier service for all air travel funded by the U.S. Government, except as provided in 41 CFR §§§ [301-10.136](#) and [301-10.137](#), [301-10.138](#) or when an approved exception applies.

Travelers selecting a non-U.S. flagged air carrier **must include** this completed Fly America Exception form and documentation supporting their exception request. **IAW [41 CFR 301-10.143](#) travelers will not be reimbursed for any transportation cost for which you improperly use foreign air carrier service.**

Documenting exceptions

To document a Fly America exception or waiver, **you must include the following** information in your Travel Authorization Request and provide updated documentation with your Trip Report for travel reimbursement:

1. A completed and signed internal agency Fly America exception form.
2. A detailed travel itinerary from a travel agent or online travel service (i.e. Google Flights, Travelocity, Orbitz, or Expedia).
3. The search results performed **at the time of booking** from an online travel service that document all available flights, and the existence of the Fly America exception identified on the Fly America exception form, if applicable.

Notes:

- ★ **Ticket cost and convenience are NOT exceptions to the Fly America Act.**
- ★ The exceptions provided by the **Open Skies Agreements** for government-funded travel **do not apply if** your transportation is **funded** by the **Department of War**.
- ★ Code sharing is when two or more airlines “code share” a flight by publishing/marketing the same flight under their own airline designators and flight numbers. **To comply w/the Fly America Act, if a code share exists between a U.S. and a foreign airline you must purchase your ticket using the U.S. airline's designator and flight number, even if the flight is operated by the foreign carrier, this ensures travel is considered Fly America compliant.** See the example below, where Delta Airlines has a code share agreement for the *same flight* with Air France.

Compliant: Delta Airlines (DL) 8399, shown as **DL8399** on the ticket, e-ticket, or boarding pass.

Non-Compliant: Air France (AF) 0337, shown as **AF0337** on the ticket, e-ticket, or boarding pass.

Traveler's Name:

Traveler's Company:

Email:

Task Order:

TAR Number:

Date:

Flight No., (including designator code e.g., BA2345):	Foreign Airline used	Foreign Airline Country:	Traveled From:	Traveled To:	Arrival Date:
EXAMPLE: LH 946	Lufthansa	Germany	FRA	NBO	14 May 2025

Fly America Exceptions

Please select the applicable exception to your travel circumstance.

1.) [41 CFR § 301-10.135](#) Allowable Exceptions:

- ☐ A. Use of a foreign air carrier is determined to be a matter of necessity IAW CFR § 301- 10.138; (Select exception(s) in section 4)
- ☐ B. No U.S. carrier provides service on a particular leg of the route, in which case foreign air carrier service may be used to or from the nearest interchange point on a usually traveled route to connect with a U.S. flag carrier.
- ☐ C. A U.S. flagged carrier involuntarily reroutes the travel on a foreign carrier (supporting documentation from the U.S. flagged carrier of the occurrence must be included.)
- ☐ D. Service on a foreign air carrier would be three hours or less and use of the U.S. flag air carrier would at least double the enroute travel time.

2.) [41 CFR § 301-10.136](#) **Traveling Between the U.S. and another Country**

A U.S. flagged carrier is available but:

- ☐ A. Will extend travel time, including delay at origin, by 24 hours or more
- B. The U.S. flag carrier does not offer nonstop or direct service and will (choose at least one below):
- ☐ 1.) Increase number of aircraft changes required outside the U.S. by 2 or more.
- ☐ 2.) Extend travel time by 6 hrs. or more.
- ☐ 3.) Require a connecting time of 4 hours or more at an overseas interchange point.

3.) [41 CFR § 301-10.137](#) **Travel solely outside the United States**

A U.S. flagged carrier is available but:

- ☐ A. Will increase the number of aircraft changes enroute by 2 or more.
- ☐ B. Will extend travel time by 6 hrs. or more.
- ☐ C. Will require a connecting time of 4 hours or more at an overseas interchange point.

4.) [41 CFR § FTR 301-10.138](#) **Matter of Necessity**

A U.S. flag carrier is available but:

- ☐ A. Cannot provide the air transportation needed.
- ☐ B. Will not accomplish the agency's mission.
- ☐ C. A seat in the authorized class of service (lowest economy fare) is **not** available. A foreign air carrier has a seat available in the authorized class of service.
- ☐ D. Is necessary for medical reasons.
- ☐ E. To avoid unreasonable risk.

Explanation / Comments:

Certification Statement of Unavailability of U.S.-Flag Air Carriers

I hereby certify: "International air transportation of persons (and their personal effects) or property by U.S.-flag air carrier was not available or it was necessary to use foreign-flag air carrier service for the reasons noted in this exception request." (See section [47.403](#) of the Federal Acquisition Regulation). **I understand I will not be reimbursed for any transportation cost for which I improperly use foreign air carrier service.**

Traveler's / Representative's Signature:

Date:

References:

1. [49 U.S.C., Title 49, Transportation, §40118, Government-financed air transportation](#)
2. [U.S. General Services Administration, Fly America Act Policy](#)
3. [CFR §301-10, Subpart B, Use of United States Flag Air Carriers](#)
4. [CFR §301-10.142, What must certification include?](#)
5. [Federal Acquisition Regulation, Subpart 47.4, Air Transportation by U.S. Flag Carriers](#)
6. [Federal Acquisition Regulation, Subpart 47.403, Guidelines for Implementation of the Fly America Act](#)
7. [Federal Acquisition Regulation, Subpart 52.247-63, Preference for U.S. Flag Carriers](#)
8. [CFR §301-2.5 \(b\), What Travel Arrangements Require Specific Authorization or Prior Approval](#)